



CHAPTER xxvi.

An Act to confirm a Provisional Order of the Local Government Board for Ireland relating to Bangor. A.D. 1916.
[19th July 1916.]

WHEREAS the Local Government Board for Ireland (hereinafter referred to as "the Local Government Board") have made the Provisional Order set forth in the schedule hereto under the Gas and Water Works Facilities Act 1870 the Gas and Water Works Facilities Act 1870 Amendment Act 1873 and the Public Health (Ireland) Acts 1878 to 1907 :

And whereas it is requisite that the said Order should be confirmed by Parliament and that the provisions herein contained should be enacted with reference to that Order :

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

1. The Order set out in the schedule hereto is hereby confirmed and all the provisions thereof shall have full validity and force. Order in schedule confirmed.

2. The Bangor Urban District Council shall not under the powers of the Order hereby confirmed purchase or acquire in any urban district any house which on the fifteenth day of December last was occupied either wholly or partially by thirty or more persons belonging to the working class as tenants or lodgers or except with the consent of the Local Government Board any house which was not so occupied on the said fifteenth day of December but has been or shall be subsequently so occupied. Restriction of power to take houses of working class.

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If the said district council acquire or appropriate any house or houses for the purposes of the said Order in contravention of the foregoing provisions they shall be liable to a penalty of five hundred pounds in respect of every such house which penalty shall be recoverable by the Local Government Board by action in the High Court and shall be carried to and form part of the Consolidated Fund of the United Kingdom Provided that the Court may if it think fit reduce such penalty.

For the purposes of this section the expression "house" means any house or part of a house occupied as a separate dwelling and the expression "working class" means mechanics artizans labourers and others working for wages hawkers costermongers persons not working for wages but working at some trade or handicraft without employing others except members of their own families and persons other than domestic servants whose income does not exceed an average of thirty shillings a week and the families of any of such persons who may be residing with them.

Short title.

3. This Act may be cited as the Local Government Board (Ireland) Provisional Order Confirmation (Gas) Act 1916.

SCHEDULE.

A.D. 1916.

BANGOR URBAN DISTRICT.

Bangor.

WHEREAS by the Bangor Gas Order 1882 (herein-after referred to as "the Order of 1882") which was confirmed by the Local Government Board (Ireland) (Bangor Gas) Provisional Order Confirmation Act 1882 the sanitary authority of the urban sanitary district of Bangor were empowered on the lands described in Part I. of the Schedule to that Order to continue construct maintain alter and enlarge gasworks apparatus and works for the manufacture and storing of gas and of residual products obtained in the manufacture of gas and matter producible therefrom and to make gas and sell and supply the same within the urban sanitary district (therein referred to as "the limits of supply") and to manufacture residual products obtained in the manufacture of gas and matter producible therefrom and to sell and dispose of the same at the works and elsewhere but were prohibited from manufacturing gas or residual products arising in the manufacture of gas on any lands except those described in Part I. of the said Schedule and from storing gas on any lands (except those described in Part I. of the said Schedule) which should be situated within three hundred yards from any dwelling-house existing at the time when they might propose to store gas thereon without the consent in writing of the owner lessee and occupier of such dwelling-house: 45 & 46 Vict. c. xxxi.

And whereas under and by virtue of the Local Government (Ireland) Act 1898 the sanitary authority for the said urban sanitary district is styled the urban district council of Bangor (herein-after referred to as "the urban district council") and the said urban sanitary district is styled the urban district of Bangor: 61 & 62 Vict. c. 37.

And whereas by section 32 of the Bangor (County Down) Water and Improvement Act 1905 (herein-after referred to as "the Act of 1905") for the purpose of extending their gasworks the district council were amongst other things empowered upon the lands described in that section to erect maintain alter improve enlarge and renew or discontinue gasworks and other works and apparatus and conveniences for making and storing gas and for supplying gas within the limits of supply of the district council and to make manufacture sell store and supply gas and residual products and by section 33 of the same Act the limits of supply of the district council for the supply of gas were extended so as to include so much of the rural district of Newtownards as lies within three miles of the boundary of the urban district and by section 41 of the same Act it was provided that the works so authorised as aforesaid should be deemed to be part of the gas undertaking of the council and that the provisions of Part III. of 5 Edw. 7. c. cxvii.

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A.D. 1916. the said Act should apply to the whole of the gas undertaking of the council :
Bangor.

And whereas the council require further to extend their gasworks and for that purpose to be authorised to purchase additional lands and it is expedient that the Bangor Gas Order 1882 and the Bangor (County Down) Water and Improvement Act 1905 (so far as it relates to the gas undertaking of the district council) should be amended and varied in manner herein-after appearing :

33 & 34 Vict. c. 70.
36 & 37 Vict. c. 89.
41 & 42 Vict. c. 52.
Now therefore We the Local Government Board for Ireland in pursuance of the powers given to Us by the Gas and Water Works Facilities Act 1870 by section 12 of the Gas and Water Works Facilities Act 1870 Amendment Act 1873 and by sections 80 and 205 of the Public Health (Ireland) Act 1878 and by any other enactments Us in that behalf enabling do hereby order that from and after the date of the Act of Parliament confirming this Order the Bangor Gas Order 1882 and the Bangor (County Down) Water and Improvement Act 1905 (so far as it relates to the gas undertaking of the council) shall be amended and varied so that the following provisions shall have effect :—

1. Notwithstanding anything in the Order of 1882 or the Act of 1905—

- (a) the district council may for the purpose of their gas undertaking purchase by agreement but not otherwise the lands described in the Schedule to this Order :
- (b) the district council may hold and use the lands described in the Schedule to this Order if and when acquired by them for all or any of the purposes of the said gas undertaking including the manufacture and storage of gas and residual products and matters producible therefrom and those lands when acquired shall be deemed and taken to be lands included in Part I. of the Schedule to the Order of 1882 and the works authorised by or in pursuance of this Order shall be deemed and taken to be part of the gas undertaking of the district council :
- (c) the district council shall not manufacture gas or any residual products on any lands other than the lands described in Part I. of the Schedule to the Order of 1882 in section 32 of the Act of 1905 or in the Schedule to this Order :
- (d) the district council shall not begin to store gas or any residual products on any lands other than the lands described in Part I. of the Schedule to the Order of 1882 in section 32 of the Act of 1905 or in the Schedule to this Order which shall be situated within three hundred yards of any dwelling-house without the previous consent in writing of the owner lessee and occupier of that dwelling-house.

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2. The costs and expenses of the district council and the Local Government Board for Ireland incurred in respect of the application for preparation making and confirmation of this Order shall be paid by the district council out of any fund or rate applicable by that council to defray the expenses incurred by them in the execution of the Public Health (Ireland) Acts 1878 to 1907.

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3. This Order may be cited as the Bangor Gas Order 1916.

SCHEDULE.

Urban District of BANGOR.

Townland of Corporation of BANGOR and County of DOWN.

No. on deposited Plan.	Description of Land.	Owners or reputed Owners.	Lessees or reputed Lessees.	Occupiers.
1	Dwelling-house retort house and store formerly known as The Old Technical School with ground at rere situate in Ballymagee Street Bangor containing 29 perches.	Baroness Clanmorris.	The District Council.	The District Council.
3	Dwelling-house shop yard and out-offices known as Nos. 32 and 34 Ballymagee Street Bangor containing 1 rood 1 perch.	Same	James Fletcher	James Fletcher.
3A and 3B.	Dwelling-house shop and yard known as 30 Ballymagee Street Bangor containing 5 perches.	Same	Same	Martin Andrews.
4 and 4c.	Premises known as the Limekilns situate in Bingham Street Bangor containing 1 rood 38 perches.	Same	Robert Neill & Sons Limited.	Robert Neill & Sons Limited.
4A	Dwelling-house and garden known as "The Cottage" Bingham Street Bangor containing 30 perches.	Same	Same	William Finlay.
4B	Dwelling-house and garden known as Limebrook Cottage Bingham Street Bangor containing 12 perches.	Same	Same	Margaret Legge.
5	Sheds and ground at rere of Ballymagee Street Bangor containing 1 rood and 4 perches statute measure.	Same	The District Council.	The District Council.

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A.D. 1916.
—
Bangor.

Given under our seal of office this tenth day of April in the year
of our Lord one thousand nine hundred and sixteen.

(L.S.)

(Signed) H. A. ROBINSON.

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